



ORDERS OF PROTECTION: STEPS YOU MUST TAKE FOR FOREIGN- BORN CLIENTS

If your foreign-born client is, or will be subject to an order of protection, this advisory provides you with important, preliminary information. This document is provided *in advance* of any detailed advice legal advice we provide in relation to your client - and is **not intended to be a substitute**.

RECOMMENDED ACTIONS FOR YOU AS COUNSEL TO TAKE IF YOUR CLIENT **IS NOT** DOMESTICALLY RELATED TO THE PROTECTED PARTY

I. CONFIRM THE ABSENCE OF DOMESTIC RELATIONSHIP ON THE ORDER, OR INTO THE RECORD

If your client not domestically related to the protected party (as defined by N.Y. Fam. Ct. Act § 812) then it is extremely helpful to have this fact acknowledged in an obvious place (e.g. preferably on the face of the order itself, in some other form of writing or at a minimum explicitly stated on the record).

Most cases are unambiguous (e.g. current spouses are domestic, whereas a complete stranger is not). But especially in borderline cases - for example, former housemates - acknowledging the lack of domestic relationship can be important for your foreign-born client.

RECOMMENDED ACTIONS FOR YOU AS COUNSEL TO TAKE IF YOUR CLIENT **IS** DOMESTICALLY RELATED TO THE PROTECTED PARTY

I. TRY TO NEGOTIATE FOR ALTERNATIVES TO AN ORDER OF PROTECTION

If a non-citizen violates a standard order of protection against a domestically related party (even an act as benign as texting an apology in violation of a no-contact order), they will become deportable - **regardless** of how seriously the criminal justice system treats such an act. The existence of an OP also appears in federal databases and will lead to additional scrutiny during international travel and immigration applications. For that reason, we encourage attorneys to try and advocate for the avoidance of any domestic OP for their foreign-born clients.

In appropriate cases, strategies we have seen successfully employed include:

- Having your client acknowledge on the record and in writing that they have no right to be present at the complainant's home/work etc. (essentially to receive a trespass warning - exposing them to immediate arrest and potentially all the way up to a burglary charge if they violate it);
- If the concern is harassing communication by the defendant, have your client acknowledge that they have no "purpose of legitimate communication" to contact the complainant (i.e. acknowledging that Aggravated Harassment 2nd 240.30(2) could apply);
- Adding a condition to an ACD not to contact the complainant; and
- Adding a condition to a conditional discharge not to contact/intentionally go near the complainant.

In each instance, the complainant receives roughly the same protection as they would have from an OP: should your client violate the terms, there will be consequences from the criminal justice system. If any of these are a possibility, please let us know and we can guide you further.

If these options are not possible, we recommend trying to add provisions to the OP which do NOT involve protection against any kind of domestic violence - such as attendance/completion/payment for a program; setting forth the specific times for permitted contact (i.e. visitation) or specific language allowing your client to pick up belongings at the prohibited location. Please contact the RIAC for further case-specific advice.

II. PROVIDE THE ATTACHED WARNINGS TO YOUR CLIENT IMMEDIATELY

A non-citizen becomes deportable if any court finds that they have violated an order of protection issued to protect against domestic violence ("VoOP").

Even before you receive any advice from RIAC, and regardless of the posture of the criminal case, it is important that you provide your client the warnings contained in the attached sheet.

III. WHERE POSSIBLE, PREVENT ANY ACKNOWLEDGEMENT OF YOUR CLIENT'S DOMESTIC RELATION TO THE PROTECTED PARTY

In order to establish deportability for violating an order of protection, immigration authorities must prove that a non-citizen was domestically related to the protected party. While records beyond the criminal case can be used, it is always best practice to avoid any on-record confirmation of the domestic nature of the relationship (as discussed above, the opposite is true if the relationship is non-domestic).

IV. IF THERE IS EVEN A SUGGESTION THAT YOUR CLIENT VIOLATED AN OP, TRY TO AVOID ANY ON-RECORD DISCUSSION UNTIL YOU CAN SPEAK DIRECTLY TO THE RIAC

Any on-record discussion of conduct which even *relates* to violating an Order of Protection risks creating evidence that can be used against your client. Even a preliminary hearing or bail review hearing - regardless of the outcome - can cause your client to become deportable.

If any such discussion arises *prior* to receiving direct advice from the RIAC, you should request to speak to the Court in chambers rather than on the record. If the Court insists on proceeding, you should call the RIAC directly to try and obtain advice in real time and we may be able to assist you.

If the court attempts to push forward with any such hearing, it is generally accurate to state that criminal counsel cannot provide the effective assistance of counsel in such matters until and unless they have spoken with the RIAC (unless you personally have sufficient expertise in immigration law). This includes hearings where no final disposition will occur.

V. MAKE SURE YOUR CLIENT DOES NOT TRAVEL INTERNATIONALLY OR APPLY FOR ANY IMMIGRATION BENEFIT BEFORE OBTAINING A RIAC ADVISAL

Being the subject of an order of protection does not make a non-citizen inadmissible - or trigger any other *specific* immigration problem. However, OPs get flagged in various federal databases - meaning a non-citizen who is subject to an Order of Protection - whether temporary or permanent - will receive heightened scrutiny when encountered, or when applying for admission to the U.S.

The concern is that if your client is subject to an OP and either travels outside the U.S. or applies files an immigration application, they are likely to receive further questioning, where authorities can ask any questions that they want. If your client admits to certain conduct (whether or not they were convicted) they could be found inadmissible - and thus denied entry back into the U.S., or denied an immigration benefit they are applying for.

For this reason, your client should be advised to obtain specific advice from an immigration attorney before travelling overseas or filing any immigration application - in order to prepare them for how to talk about the incident(s) which lead to the order of protection without admitting anything disqualifying for immigration purposes.

THINGS TO KNOW IF YOU ARE A NON-CITIZEN, WHO IS SUBJECT TO A DOMESTIC ORDER OF PROTECTION

The following information was prepared by the Regional Immigration Assistance Center, ("RIAC"). By giving you this document, your attorney has adopted and endorsed it as *their* legal advice. Please note: RIAC has no direct attorney-client relationship with you.

Domestic orders of protection can cause significant immigration consequences for non-citizen clients. Please make sure to carefully read this document

If you are a non-citizen, being subject to a domestic order of protection can have the following immigration consequences:

- **Any violation of an order of protection can make you deportable - even if you are never charged with a crime.** Non-citizens become deportable even if a court merely *agrees* that a violation occurred. You do not need to be charged with an offense, such as criminal contempt, to risk becoming deportable.
- **Even if the protected party (e.g. your spouse) reaches out to you, simply responding could make you deportable.** Even technical, trivial violations of a domestic order of protection make a non-citizen deportable.
- **No domestic violence is required to make your client deportable.** Non-citizens become deportable even if they violate a domestic order of protection in a non-violent way (e.g. sending a friendly text message, if the order of protection prohibits all contact).
- **Orders of Protection are reported to federal criminal databases.** Being subject to an order of protection does not cause any immigration consequences *by itself*. But the order is reported to federal criminal databases. If you file an immigration application or travel internationally, authorities will see it and may ask questions about it. If you are subject to an order of protection, you should obtain advice from an immigration lawyer before attempting to travel internationally or filing any immigration applications.

**PLEASE NOTE - IF YOU HAVE ANY QUESTIONS ABOUT YOUR CASE:
DO NOT CALL THE RIAC DIRECTLY - YOU MUST ASK YOUR LAWYER.**